DATED 5 JUNE 2026

PRIVATE & CONFIDENTIAL | WITHOUT PREJUDICE AND SUBJECT TO CONTRACT

(1) SUTHERLAND LOGISTICS LIMITED

- and -

(2) RAYMOND ALEXANDER WHITCOMBE

SETTLEMENT AGREEMENT

relating to the termination of employment

Whitfield Carter LLP
22 Bishopsgate, London EC2N 4BQ
Ref: SW/EM/SUTH-0119 | Acting for the Company

Whitfield Carter LLP is a limited liability partnership registered in England and Wales (OC418302). Authorised and regulated by the Solicitors Regulation Authority.

SETTLEMENT AGREEMENT

This Agreement is made on 5 June 2026

BETWEEN:

(1) SUTHERLAND LOGISTICS LIMITED, a company incorporated in England and Wales (registered number 04417682) whose registered office is at Sutherland House, Calder Park, Wakefield WF2 7AW (the "Company"); and

(2) RAYMOND ALEXANDER WHITCOMBE of 14 Beechwood Rise, Solihull, West Midlands B91 3PJ (the "Employee"),

each a "Party" and together the "Parties".

BACKGROUND

(A) The Employee was employed by the Company under a contract of employment dated 3 September 2014 (the "Employment Contract"), most recently in the role of Regional Depot Manager (Midlands), based at the Company's Coleshill distribution centre.

(B) The Employee's employment terminated, or will terminate, by reason of redundancy on 16 January 2026 (the "Termination Date"). The Company's position is that the Employee was dismissed by reason of redundancy following a reorganisation of the Company's Midlands operations; the Employee disputes that the dismissal was by reason of redundancy and contends that the reason or principal reason for his dismissal was that he made protected disclosures within the meaning of section 43A of the Employment Rights Act 1996.

(C) The Employee has presented a claim to the Employment Tribunal (case number 1304562/2026) complaining of automatically unfair dismissal under section 103A of the Employment Rights Act 1996, ordinary unfair dismissal under section 98 of that Act, and detriment on the ground of protected disclosures under section 47B of that Act (the "Proceedings").

(D) The Parties have entered into discussions, on a without prejudice basis and with the assistance of Acas, with a view to resolving all matters between them. This Agreement records the terms on which they have agreed to do so.

(E) The Parties intend that this Agreement satisfies the conditions regulating settlement agreements in section 203(3) of the Employment Rights Act 1996 and the corresponding provisions of the other statutes referred to in clause 5.

AGREED TERMS

1. Definitions and interpretation

1.1 In this Agreement the following definitions apply (and the table of defined terms set out below forms part of this clause):

"Acas"	the Advisory, Conciliation and Arbitration Service.
"Adviser"	Ms Eleanor Bartlett of Ashworth Quinn LLP, the relevant independent adviser

	for the purposes of the statutes referred to in clause 5.
"Claims"	the claims and potential claims listed in clause 5.2 and any other claim of any kind whatsoever (whether arising under contract, statute, common law, EU-derived law or otherwise, and whether in the United Kingdom or elsewhere) that the Employee has or may have against the Company or any Group Company arising out of or in connection with his employment or its termination.
"Group Company"	the Company, any subsidiary or holding company of the Company, and any subsidiary of any such holding company, in each case within the meaning of section 1159 of the Companies Act 2006.
"Termination Payment"	the sum of £108,000 payable under clause 3.
"Termination Date"	16 January 2026.

1.2 The headings in this Agreement are for convenience only and shall not affect its interpretation. References to clauses are to clauses of this Agreement. Words in the singular include the plural and vice versa.

2. Termination of employment

2.1 The Employee's employment with the Company terminated on the Termination Date. The Employee's continuous employment for statutory purposes is treated as having commenced on 3 September 2014.

2.2 The Company has paid, or will pay in the ordinary course, the Employee's salary and accrued but untaken holiday up to the Termination Date, in each case subject to deductions for income tax and employee National Insurance contributions. The Employee acknowledges that, save as set out in this Agreement, no further sums are due to him in respect of salary, holiday, bonus, commission, expenses or otherwise.

2.3 The Employee shall submit any outstanding expenses claims, with supporting receipts, within 14 days of the date of this Agreement, and the Company shall reimburse properly incurred expenses in the ordinary course.

3. Settlement payments

3.1 In full and final settlement of the Claims, and subject to and conditional upon the Employee complying with the terms of this Agreement, the Company shall pay the Employee the Termination Payment of £108,000, comprising:

(a) a payment of £30,000 in respect of the termination of the Employee's employment (which the Parties consider may be paid without deduction of income tax under sections 401 to 403 of the Income Tax (Earnings and Pensions) Act 2003, up to the £30,000 threshold), inclusive of any statutory redundancy entitlement of £9,990; and

(b) a compensatory payment of £78,000, which the Company shall pay subject to deduction of income tax at the appropriate rate under PAYE (but without deduction of employee National Insurance contributions, the Company treating this sum as termination compensation).

3.2 The Company shall pay the Termination Payment within 21 days of the later of (a) the date of this Agreement and (b) the date on which the Company receives a copy of this

Agreement signed by the Employee and the certificate at Schedule 2 signed by the Adviser.

3.3 The Company shall contribute £15,000 (inclusive of VAT) towards the Employee's legal fees incurred exclusively in connection with the termination of his employment and the advice on the terms and effect of this Agreement, such sum to be paid directly to the Adviser's firm within 28 days of receipt of an invoice addressed to the Employee but expressed to be payable by the Company.

3.4 The Parties believe, but do not warrant, that the apportionment of the Termination Payment in clause 3.1 is correct. Clause 4 (Tax indemnity) applies to all payments and benefits under this Agreement.

4. Tax indemnity

4.1 The payments and benefits referred to in clause 3 are paid on the basis set out in that clause. The Employee shall be responsible for, and shall indemnify the Company and each Group Company against, all income tax and employee National Insurance contributions (and any interest, penalties, costs and expenses) that may be payable in respect of, or in connection with, any of the payments and benefits provided under this Agreement, other than (i) income tax and employee National Insurance contributions deducted by the Company at source under clause 3.1(b), and (ii) employer National Insurance contributions.

4.2 The Company shall give the Employee reasonable notice of any demand for tax which may lead to a liability under this clause 4, and shall provide him with reasonable access to any documentation he may reasonably require to dispute such demand (provided that nothing in this clause shall prevent the Company from settling any such demand as it sees fit).

5. Settlement and waiver of claims

5.1 The terms of this Agreement are in full and final settlement of the Claims and of all and any claims (whether or not in the contemplation of the Parties at the date of this Agreement) that the Employee has or may have against the Company or any Group Company or any of their respective officers, employees or workers arising out of or in connection with his employment or its termination.

5.2 The Claims and waiver in clause 5.1 relate to and include (without limitation) the following:

(a) the claims brought in the Proceedings, namely automatically unfair dismissal (section 103A, Employment Rights Act 1996), ordinary unfair dismissal (sections 94 and 98, Employment Rights Act 1996) and detriment on the ground of protected disclosures (section 47B, Employment Rights Act 1996);

(b) any claim for a statutory redundancy payment (section 135, Employment Rights Act 1996);

(c) any claim for wrongful dismissal, breach of contract or in respect of wages or other payments (including under Part II of the Employment Rights Act 1996);

(d) any claim in respect of holiday pay under the Working Time Regulations 1998;

(e) any claim for discrimination, harassment or victimisation under the Equality Act 2010 (in respect of any protected characteristic);

(f) any claim in relation to the right to be accompanied, to a written statement of reasons, or to itemised pay; and

(g) any claim for personal injury of which the Employee is or ought reasonably to be aware at the date of this Agreement, save as provided in clause 5.4.

5.3 The waiver in this clause 5 applies whether or not the Employee is or could be aware of such claims at the date of this Agreement, and whether or not they are or could be in the contemplation of the Parties at that date.

5.4 This clause 5 does not apply to, and the Employee does not waive: (a) any claim to enforce this Agreement; (b) any claim in respect of accrued pension rights; (c) any claim for personal injury which the Employee is not, and could not reasonably be, aware of at the date of this Agreement; and (d) any claim arising after the date of this Agreement.

5.5 The Employee warrants that, save for the claims listed in clause 5.2, he is not aware of any other claim he has or may have against the Company or any Group Company.

6. Withdrawal of the Proceedings

6.1 Upon the Company confirming in writing that it has signed this Agreement, the Employee shall promptly sign and lodge with the Employment Tribunal a notice of withdrawal of the Proceedings, and shall consent to the Proceedings being dismissed on withdrawal, with no order as to costs. The Parties shall co-operate in notifying Acas that the matter has been resolved.

6.2 The Employee agrees not to commence, continue or pursue any of the Claims (or to instruct or encourage any other person to do so) before any court, tribunal or other body.

7. Employee warranties

7.1 The Employee warrants and represents to the Company as a strict condition of this Agreement that:

(a) he has not committed any repudiatory breach of the Employment Contract or any other act or omission which would have entitled the Company to terminate his employment without notice;

(b) he has returned, or will return on or before the Termination Date, all Company property in his possession or control, including any laptop, mobile telephone, security pass, fuel card, keys and documents, and has deleted any Company confidential information from any personal device;

(c) he has not retained any copies of the Company's confidential information; and

(d) he is not aware of any matter or circumstance which, had the Company been aware of it, would have caused it not to enter into this Agreement on these terms.

8. Confidentiality

8.1 The Employee shall keep confidential, and shall not disclose to any person, the existence and terms of this Agreement and the circumstances surrounding the termination of his employment, save: (a) to his immediate family, professional advisers, and HM

Revenue & Customs; (b) as required by law or regulatory authority; or (c) to the extent the information is already in the public domain otherwise than through breach of this clause.

8.2 The Employee shall continue to be bound by his continuing obligations of confidentiality under the Employment Contract and at common law in respect of the Company's trade secrets and confidential information.

9. Protected disclosures and reporting

9.1 Nothing in this Agreement shall prevent the Employee from: (a) making a protected disclosure under Part IVA of the Employment Rights Act 1996; (b) reporting a suspected criminal offence to any law enforcement agency; (c) co-operating with any criminal investigation or prosecution; or (d) making any disclosure to, or complying with any requirement of, a regulatory body (including the Driver and Vehicle Standards Agency, the Health and Safety Executive and the Information Commissioner).

9.2 The Parties acknowledge that the validity of this Agreement is not affected by the fact that the Employee has made, or may in future make, a protected disclosure.

10. Non-derogatory statements and references

10.1 Neither Party shall make, publish or cause to be made or published any statement that disparages or is intended to disparage the other Party (or, in the case of the Company, any of its officers or employees). The Company shall use reasonable endeavours to procure that the members of the Company's senior management team who are aware of this Agreement comply with this clause.

10.2 The Company shall, on receipt of a written request from a prospective employer, provide a reference in the form set out in Schedule 3, and shall not depart from the substance of that reference unless required to do so to comply with any legal or regulatory obligation or to avoid making a statement that is untrue or misleading.

11. Independent legal advice

11.1 The Employee confirms that, before signing this Agreement, he received independent legal advice from the Adviser, who is a relevant independent adviser, as to the terms and effect of this Agreement and in particular its effect on his ability to pursue the Claims before an employment tribunal or court.

11.2 The Employee shall procure that the Adviser signs the certificate at Schedule 2.

11.3 The Adviser has confirmed to the Employee that there is, and was at the time the advice was given, in force a contract of insurance, or an indemnity provided for members of a profession or professional body, covering the risk of a claim by the Employee in respect of loss arising in consequence of that advice.

11.4 The Parties agree and acknowledge that the conditions regulating settlement agreements under the relevant statutes (including section 203(3) of the Employment Rights Act 1996 and section 147 of the Equality Act 2010) are intended to be, and are, satisfied.

12. Entire agreement and miscellaneous

12.1 This Agreement constitutes the entire agreement between the Parties and supersedes any prior agreement, arrangement or understanding between them relating to its subject matter. Each Party acknowledges that it has not relied on any representation not expressly set out in this Agreement.

12.2 No variation of this Agreement shall be effective unless it is in writing and signed by, or on behalf of, each Party.

12.3 This Agreement may be executed in any number of counterparts, each of which when executed shall constitute a duplicate original, but all the counterparts together shall constitute one agreement.

12.4 A person who is not a Party to this Agreement shall have no rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of it, save that any Group Company and any officer or employee referred to in clause 5.1 may enforce the waiver in clause 5.

12.5 This Agreement, although marked “without prejudice and subject to contract”, shall upon signature by both Parties and the Adviser become an open and binding agreement.

13. Governing law and jurisdiction

13.1 This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

13.2 Each Party irrevocably agrees that the courts of England and Wales and the Employment Tribunals shall have jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement.

Schedule 1 Agreed announcement

If asked, the Company and the Employee will state only that “Raymond Whitcombe left Sutherland Logistics Limited in January 2026 after eleven years’ service, and the Company wishes him well for the future.”

Schedule 2 Adviser’s certificate

I, Eleanor Bartlett, of Ashworth Quinn LLP, 8 Temple Row, Birmingham B2 5HG, confirm that:

(a) I am a relevant independent adviser within the meaning of section 203(3A) of the Employment Rights Act 1996.

(b) I have advised Raymond Alexander Whitcombe (the Employee) as to the terms and effect of the above Agreement and, in particular, its effect on his ability to pursue his rights before an employment tribunal.

(c) There is, and was at the time I gave the advice, in force a contract of insurance, or an indemnity provided for members of a profession or professional body, covering the risk of a claim against me by the Employee in respect of loss arising in consequence of that advice.

Signed: Eleanor Bartlett
Eleanor Bartlett, Ashworth Quinn LLP Date: 4 June 2026

Schedule 3 Agreed reference

To whom it may concern

Raymond Whitcombe was employed by Sutherland Logistics Limited from 3 September 2014 to 16 January 2026. At the date his employment ended he held the position of Regional Depot Manager (Midlands), with responsibility for the management of a distribution centre, a team of approximately 60 staff, and a fleet of heavy goods vehicles. Mr Whitcombe carried out his duties competently and conducted himself professionally. His employment ended following a reorganisation of the Company’s operations. It is our policy to provide only factual references and we are unable to comment further. We wish Mr Whitcombe well in his future career.

Yours faithfully

For and on behalf of Sutherland Logistics Limited

Execution

This Agreement has been entered into on the date stated at the beginning of it.

EXECUTED by the Parties:

SIGNED for and on behalf of
SUTHERLAND LOGISTICS LIMITED

Lesley Crane (signed electronically)
Name: Lesley Crane
Title: Finance Director, duly authorised Date: 5 June 2026

SIGNED by
RAYMOND ALEXANDER WHITCOMBE

Raymond A. Whitcombe (signed electronically)
Date: 5 June 2026